

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CIVIL REVISIONAL JURISDICTION)

Present:

Mr. Justice Md. Moinul Islam Chowdhury

CIVIL REVISION NO. 161 OF 2015

Razu Ahmed

----- Defendant-Appellant -Petitioner

=Versus=

Mst. Rahima Khatun

----- Plaintiff-Respondent-Opposite Party

Mr. Shasti Sarker with

Mr. Ashutosh Kumar Sana, Advocates

----- For the Petitioner

Mr. S. M. Rezaul Karim, Advocate

----- For the Opposite Party

Judgment on: 12.03.2018

At the instance of the present defendant-appellant- petitioner, Razu Ahmed, this Rule has been issued calling upon the opposite party to show cause as to why the judgment and order dated 26.10.2014, passed by the learned Joint District Judge, Additional Court, Kushtia in Paribarik Appeal No. 07 of 2014, affirming those dated 31.03.2014 passed by the learned Assistant Judge, Kumarkhali, Kushtia in Paribarik Suit No. 69 of 2011 decreeing the suit should not be set aside.

The relevant facts for disposal of the present Rule, *inter-alia*, are that the present opposite party, Mst. Rahima Khatun, as the plaintiff filed the Family Suit No. 69 of 2011 in the court of the

learned Assistant Judge and Family Court, Kumarkhali, Kushtia for realization of dower money and maintenance for herself and for her a son and 2(two) daughters (both are minors). The plaint contains that the defendant married the plaintiff on 01.09.1993 through a kabinnama by fixing Tk. 35,000/- (Tk. thirty five thousand) as dower. During their wedlock 3(three) children were born being two daughters and a son. The eldest daughter now married after obtaining majority. Two children live with the mother who are minors. The present plaintiff opposite party left the matrimonial home on demand of dowry amounting to Tk. 50,000/-(Tk. fifty thousand) and for physical torture upon her for dowry. On 14.09.2011 plaintiff claimed dower and maintenance which the present defendant petitioner refused.

The present petitioner as the defendant contested the suit by filing a written statement denying the statement made in the plaint. However, he admitted the married and dower of Tk. 35,000/- (Thirty five thousand)and also admitted that 3 (there) children were born in their marriage. The present plaintiff opposite party left the matrimonial home on 10.01.2011 by taking all the Jewelry and cash money from his house, as such, he divorced her on 26.06.2011.

After hearing the parties the learned trial court decreed the suit by the judgment and decree dated 31.03.2014 by awarding Tk. 35,000/- (Tk. Thirty five thousand) as dower money and Tk. 1000/- (Tk. one thousand) for her maintenance and also for Tk. 1000/- (Tk. one thousand) for the daughter Ritu Khatun and Tk. 2,000/-(two

thousand) for the son Arafat Ahmed until attaining majority. Being aggrieved the defendant as the appellant preferred the Family Appeal No. 07 of 2014 in the Court of learned District Judge, which was heard by the learned Joint District Judge, Additional Court, Kushtia who by his judgment and decree dated 26.10.2014 affirmed the judgment of the trial court. This revisional application has been filed challenging the legality of the said impugned judgment and decree and this Rule was issued thereupon.

Mr. Shasti Sarker, the learned Advocate, appearing along with the learned Advocate Mr. Ashutosh Kumar Sana for the present petitioner, submits that the learned Additional District Judge, Kushtia has committed an error of law in not holding that the plaintiff is a divorced wife and the defendant has paid her dower money, as such, the plaintiff is not entitled to get maintenance and dower money but the appellate court did not consider which has caused a failure of justice. He also submits that his eldest daughter namely Rojoni Khatun had already married after obtaining majority of age and he desired to take his son Arafat Ahmed under his custody. Therefore, the learned trial court and the learned appellate court committed an error of law by declaring the maintenance for the children and the divorced wife, as such, the Rule should be made absolute.

The Rule has been opposed by the opposite party.

Mr. S. M. Rezaul Karim, the learned Advocate appearing for the opposite party submits that after considering the evidence

produced by the parties in the trial court by way of documentary and oral evidence the learned trial court came to a lawful conclusion to decree the suit and the learned appellate court after perusing the judgment passed by the trial court and also considering the evidence came to a lawful conclusion to affirm the judgment of the trial court by passing the impugned judgment and decree, as such, the learned appellate court committed no error of law by passing the concurrent judgment and no interference is called for from this court and the Rule should be discharged. The learned Advocate also submits that the present opposite party has been suffering from serious financial difficulty to look after the minor children of the wedlock between the present petitioner and the opposite party. The present petitioner failed to provide any financial support and failed to pay the dower money which he is obliged to, as such, the learned courts below committed no error of law and the Rule should be discharged.

Considering the above submissions made by the learned Advocates appearing for the respective parties and also considering the revisional application filed under Section 115(1) of the Code of Civil Procedure along with the annexures therein, in particular, the impugned judgment and also perusing the lower court records, it appears to me that the present petitioner and the opposite party got married on 01.09.1993 through a registered Kabinnama containing Tk. 35,000/-(Taka thirty five thousand) as dower money and 3(three) children were born in their wedlock. The present opposite party left

the matrimonial home and started to live with her parents where she has been living with the children sometime after in the year of 2011 and this family suit was filed by her for seeking dower and maintenance.

There are some admitted position between the parties which are the marriage between the parties and the birth of 3(three) children in their family. It is also admitted that dower was fixed at Tk. 35,000/- (Tk. thirty five thousand) and Tk.100 (Tk. one hundred) was paid as prompt dower. The wife is entitle to dower money as soon as demanded as per the terms and condition of the Kabinnama, therefore, the learned appellate court committed no error of law by affirming the judgment and decree of the trial court regarding the dower money. As to the maintenance of the children, the present petitioner as the father bears responsibility to maintain his wife and the children under the Muslim Family Law. As the marriage was solemnized in the year of 1993 but in the year of 2011 the family was broken and the present plaintiff opposite party started to live separately with the 3(three) children and the husband petitioner has been living separately.

I have perused the findings of the learned trial court who decreed the suit by giving Tk. 35,000/- (Tk. thirty five thousand) as dower and Tk. 4,000/- (Tk. four thousand) as the maintenance of the children and her wife. There is a disputes as to the divorce between the parties and the benefit of this dispute should get by the wife because the present petitioner is under an obligation to prove that

there was a divorce which he failed, as such, the wife and the children are entitle to get maintenance as per direction given by the learned trial court as to the dower and maintenance.

The learned Advocates appearing for the parties calculated that the plaintiff opposite party is entitle to get total Tk. 3,71,000/-(Tk. three lac seventy one thousand) as dower and maintenance as per the concurrent decree passed by the courts below. However, at the time of issuance of the Rule dated 27.01.2015 the petitioner was directed to pay Tk. 50,000/-(Tk. fifty thousand) and by the order of this court dated 04.12.2016 the petitioner was also directed to pay for Tk. 40,000/-(Tk. forty thousand). Accordingly, the petitioner paid Tk. 90,000/- (Tk. ninety thousand) as per direction of this court towards dower money as well as the maintenance. As per the above calculation the total outstanding amount to be paid by the present petitioner comes to Tk. 3,71,000 – Tk.90,000 =2,81,000/- (Tk. Two lac eighty one thousand) as on today (date 12.03.2018) therefore which the present petitioner must pay to the present opposite party No. 1, Mst. Rahima Khatun through the pending Family Execution Case No. 07 of 2014 within 6(six) months in 6(six) monthly instalments.

In view of the above, I consider that the learned appellate court did not commit any error of law by concurrently passing the impugned judgment affirming the judgment of the learned trial court. I am therefore not inclined to interfere into the judgment and decree passed by the appellate court below.

Accordingly, I do not find merit in the Rule.

In the result, the Rule is discharged.

The present defendant petitioner, Razu Ahmed son of Answar Ali, is hereby directed to pay Tk. 2,81000/-(Taka two lac eighty one thousand) in favour of present opposite party, Mst. Rahima Khatun, through the Family Execution Case No. 07 of 2014 pending in the Court of Assistant Judge and Family Court, Kumarkhali, Kushtia within 6(six) months in 6(six) monthly instalments beginning from 01.05.2018 and the petitioner is also directed to pay the monthly maintenance of Tk. 4,000/-(Tk. four thousand) as per decision of the learned trial court.

The opposite party is hereby directed to withdraw the Family Execution Case No. 07 of 2014 on receiving the 6th instalment out of total Tk. 2,81,000/- as full and final payment of arrears, however, in failure the Execution case shall continue.

The interim order of stay upon the impugned judgment and decree at the time of issuance of the Rule is hereby recalled and vacated.

The Section is directed to communicate this judgment and decree to the court concern and the Section is also directed to send down the lower courts records immediately.